

Summary of main points

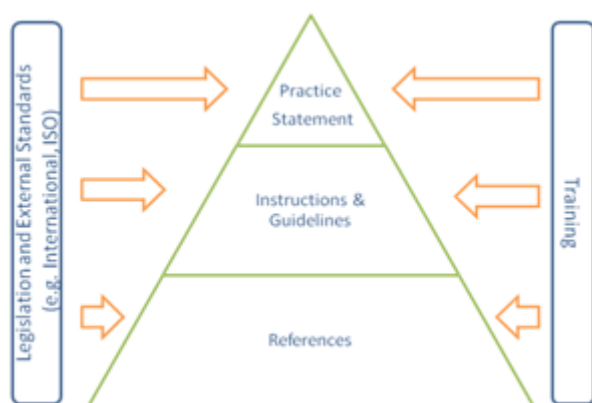
The practice statement system set out in this document is a direction from the Secretary and must be followed by all staff undertaking departmental functions.

This document outlines:

- the practice statement system
- what are practice statements and instructions and guidelines (I&Gs)
- requirements for adhering to practice statements and I&Gs
- how to access practice statements and I&Gs
- the responsibilities for owning and managing practice statements and I&Gs.

1. Introduction

The practice statement system is a three-tier framework of documentation comprising practice statements, I&Gs and references. The system provides direction and assistance to staff in undertaking their jobs.



The practice statement system is a structured way to document the processes undertaken by staff performing departmental functions. The process to develop material within the practice statement system includes planning, developing, approving, delivering and reviewing material. The system governs how material is managed including: ownership, approval, record keeping, accessibility and maintenance.

This practice statement covers the high-level management requirements for practice statements and I&Gs.

Detailed information on approving, registering and publishing practice statements and I&Gs can be found in the I&G on Approval, registration and publication of practice statements and instructions & guidelines.

2. Definitions

Definitions used in this document

Term	Definition
Practice statement system	A system to document and manage policy and procedures.
Practice Statement	A nationally approved direction to staff. It sets out the principles to operate by and the powers and obligations of staff. They are primarily aimed at providing guidance where there are multiple options for administering legal requirements, including where there are areas of discretion.
Instructions and guidelines (I&Gs)	Sets out the process, standards or criteria to be adhered to in delivering a service.
Information publication scheme (IPS)	The scheme established under Part II of the Freedom of Information Act 1982 requiring DAFF to publish information about what it does and the way it does it, as well as information dealt with or used in the course of its operations.

3. Legal outline

DAFF functions are based on a wide range of legislation and administrative law. Practice statements and I&Gs provide guidance and consistency in decision-making. Acting in accordance with them will help to minimise risk to both staff and the department.

Staff need to apply practice statements and I&Gs appropriately. This involves:

- searching for and following the current practice statements and I&Gs relevant to the tasks being performed
- making decisions in accordance with the principles of procedural fairness. These include providing a fair hearing to anyone whose interest would be negatively affected by the decision, and ensuring that the decision is made without bias
- applying guidance flexibly in a way that is appropriate to the circumstances of each case
- choosing options to manage risks which are proportionate, least restrictive or intrusive and only imposed for as long as necessary
- following the law if a staff member encounters inconsistencies with the guidance material. Similarly, a practice statement should be followed over an I&G if there are inconsistencies, and an I&G over a reference. Where appropriate, staff should cite the law as the authority for their decision rather than the practice statement or I&G
- staff reporting any anomalies to their supervisor and recording them on the issues register so corrective action can be taken.

If these principles are not followed, it is possible that the decision may be successfully challenged through judicial review. Failure to follow relevant practice statements and I&Gs can also result in disciplinary action (see s13 (5) and s15 (1) of the Public Service Act 1999).

The practice statements and I&Gs are provided for the guidance of staff. Members of the public must not rely upon the information contained in the practice statement and I&Gs. While the department makes every effort to ensure that the information contained in the practice statements is up to date and accurate, the department does not make any guarantees, undertakings, representations or warranties that the information contained or referred to in the practice statements is accurate, reliable, current or complete or that staff will act consistently with the practice statements or I&Gs. Members of the public should exercise their own skill and judgment and make their own enquiries and, where necessary, seek their own independent legal advice relevant to their particular circumstances. The Commonwealth accepts no liability for any loss suffered as a result of reliance on any material contained or referred to in the practice statement system.

4. Principles

Practice statements and I&Gs should:

- meet legal requirements—be in accordance with regulatory, high-level policy and domestic/ international obligations including work health and safety, and animal welfare requirements
- aligned to the relevant business model—reflect the department’s position, be able to be attributed to a service the department delivers in the business model
- be readily identifiable—standard templates should be used to ensure a uniform look and feel so that material can be easily identified by staff and the public.

5. Governance

5.1 Approvals

When considering whether to approve a practice statement or I&G, it is necessary to assess in each case whether the direction is lawful and reasonable. Lawful means that the direction involves no illegality and is sufficiently related to the employment relationship or some other public interest. Reasonable is a question of fact and balance to be determined in each case.

All practice statements and I&Gs must be approved in a two-step process comprising initial endorsement by affected areas and final approval by the person with functional responsibility for the subject matter covered by the practice statement or I&G. This will be applied on a sliding scale as illustrated below and is further described in the I&G on Approval, registration and publication of practice statements and instructions & guidelines.

Document type	Endorsement	Approval
Practice Statement – across divisions that fall under more than one Deputy Secretary	Deputy Secretaries	Secretary

Practice statement—across divisions that fall under the same Deputy Secretary	First Assistant Secretaries	Deputy Secretary
Practice statement—within division	Assistant Secretary	First Assistant Secretary
I&G	Director/EL2	Assistant Secretary

5.2 Registration

Once practice statements and I&Gs are approved, they must be centrally registered. The document will become operative on date of publication.

Documents will be allocated a unique identifier and must be version controlled.

5.3 Format

Practice statements and I&Gs must be in the standard template to ensure a uniform look and feel so that material can be easily identified by staff and the public. If there is a specific business need, the Practice Statement Administrator may approve a different format.

5.4 Availability and accessibility

Whether practice statements and I&Gs will be made available to the public is to be determined when they are developed and is to be indicated at the top of the template ('Internal' or 'Internal and External').

All practice statements and I&Gs are expected to be released publically to promote transparent administration and increased accountability, unless a formal exclusion is available under the IPS. Practice statements authorised to be distributed externally will be made available on the DAFF website in accordance with IPS requirements.

All material must meet the DAFF web content accessibility guidelines.

5.5 Currency and review

Practice statements and I&Gs must be reviewed at least every three years for accuracy and overall content. The length of the review period will depend on the nature and risk of the activity being documented.

5.6 Consultation

DAFF will consult with industry and other government agencies, including state authorities where applicable, when developing and reviewing practice statements and I&Gs.

The minimum consultation periods are: two weeks for internal department consultation, one month for cross-agency consultation, and two months for public consultation.

5.7 Feedback

Internal feedback on practice statements and I&Gs should be given to the relevant contact identified on the document and logged on the issues register.

Feedback on externally available practice statements can be sent to the [Practice Statement Administrator](#) mailbox.

6. Roles and responsibilities

Role	Responsibility
Secretary	Administration of DAFF legislation.
Deputy Secretary	Assists the Secretary to administer the legislation, in particular providing guidance on resolving issues affecting more than one division.
Practice Statement Administrator – First Assistant Secretary (FAS)	Responsible for the practice statement system including its overall performance. This includes providing templates, registration, publication, and quality assurance. This also includes consistency of format, content, style and monitoring of periodic reviews, and maintaining an auditable list of all material including withdrawn/superseded statements. Ensures determination of threshold issues (such as conformance with the biosecurity business model), IPS and internal/external publishing requirements.
First Assistant Secretary – Practice Statement Oversight	Responsible for establishing the service delivery standards under a practice statement, overseeing the suite of material related to that practice statement and assessing staff conformance with that material. They are responsible for ensuring material is created properly including through consultation across divisions, resolution of issues and adherence to relevant legal requirements. A First Assistant Secretary – Practice Statement Oversight is also known as an owner of material.
First Assistant Secretary – Service Delivery	Responsible for delivering services within their division in accordance with the standards set out in practice statements and I&Gs. Responsible for acting on conformance information provided by a First Assistant Secretary – Practice Statement Oversight relating to their division.
Assistant Secretary	Responsible for implementing practice statements and I&Gs and ensuring all levels of supporting material including training are in place for each service or process they deliver.
Regional managers and supervisors	Responsible for making sure appropriate practice statements and I&Gs are available for staff relating to their duties and that they are complied with.
Staff	

Required to search for and act in accordance with practice statements and I&Gs, as set out in the legal outline section.

7. Record Keeping

All material must be:

- appropriately classified, stored and handled in accordance with DAFF's Protective Security Policy
- stored in accordance with DAFF CEI 1.6 - Record Keeping and DAFF Record Keeping Standard
- Retained and disposed of consistent with the requirements under the Archives Act 1983 and DAFF's disposal guidelines.

8. Review

This practice statement is subject to an annual review.

9. Conformance

Where required, practice statements will include indicators that will measure performance and conformance within the policy framework of which the practice statement is being developed.

The Practice Statement Administrator will develop performance measures relating to the practice statement system and will report on them to the Business Assurance Sub-Committee on a quarterly basis.

10. Related material

Approval, registration and publication of practice statement and instructions and guidelines I&G

11. Detailed version history

Version Number	Version Date	Amendment Details
V2.0	02/08/2012	Revised policy to establish the Practice Statement System
V1.0	10/05/2010	This policy replaces other existing policies relating to the management of instructional material for all BSG areas

Source: <https://www.agriculture.gov.au/about/commitment/practice-statements/practice-statement-system>